

**JELLISON VS. SHASTA COUNTY****CASE NUMBER: 25CV-0208476**

**Tentative Ruling on Order to Show Cause:** On June 24, 2026, the Court issued an Order to Show Cause Re: Sanctions to Plaintiff Talea Jellison and Counsel Larry L. Baumbach for failure to appear on May 1, 2026 as ordered on February 26, 2026 and failure to appear on June 5, 2026 as ordered on May 1, 2026. Notice of the May 1, 2026 hearing was provided by the Court in the Order of Assignment dated February 26, 2026, which was mailed to counsel on February 26, 2026. When Plaintiff did not appear on May 1, 2026, the Court continued the matter to June 5, 2026. Per the Notice of Further Trial Setting Conference filed on May 5, 2026, Plaintiff was provided notice of the June 5, 2026 hearing on May 4, 2026. Plaintiff has not filed a written response to the Order to Show Cause. Without sufficient excuse for failing to appear at two properly noticed hearings, monetary sanctions are imposed in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to issue an Order of Sanctions.

**Tentative Ruling on Review Hearing:** This matter is on calendar for a status conference. The Court notes that the matter is at issue and appears to be ready to be set for trial. Defendant has posted jury fees and Plaintiff has waived the right to a jury by not posting within ten days of June 5, 2026. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. The Court intends to set a Mandatory Settlement Conference, a trial date, and a trial readiness hearing on the Butte Exchange that precedes the selected trial date. **An appearance is necessary on today's calendar. Plaintiff's failure to appear will result in the issuance of an Order to Show Cause Re: Dismissal for failing to appear on May 1, 2026, June 5, 2026, and August 7, 2026 and failure to timely prosecute.**

**JOHNSON, ET AL VS. PARENT, ET AL****CASE NUMBER: CVCV21-0197618**

**Tentative Ruling on Review Hearing:** This matter is on calendar for review regarding status of default judgment. The Court has repeatedly warned Plaintiffs and counsel that the five-year statute was quickly approaching. However, a review of the file reveals that prior to this Court's involvement, the matter was stayed pending arbitration. As it was not previously ordered, the Court orders that the stay was lifted effective February 25, 2025, which is the day that the Answer was stricken pursuant to an Order to Show Cause. Because the time the matter was stayed is not part of the five years, the matter has not yet hit the five-year statute.

Regarding the default judgment, on February 25, 2025, the Court imposed terminating sanctions against Defendants Wendy and Mark Parent and Counsel Tyler Lalaguna pursuant to an Order to Show Cause. The Answer, by way of Stipulation filed May 17, 2022, was ordered stricken. Default was entered against both Defendants on February 5, 2026. The matter has been on calendar repeatedly awaiting a default judgment packet. An incomplete default judgment packet was filed June 18, 2026 with additional filings on July 7, 2026. Because a proposed judgment was not included, the default judgment packet was not forwarded to the Court for review. A proposed judgment was received on August 3, 2026, however, this did not leave sufficient time for review before today's hearing. The matter is continued to **Friday, October 2, 2026 at 1:30 p.m. in Department 63 on the Butte Exchange** for status of default judgment. The October 2, 2026 hearing will be vacated if a judgment is on file. **No appearance is necessary on today's calendar.**

**JONES VS. BRIDGETT, ET AL.****CASE NUMBER: 25CV-0209444**

**Tentative Ruling on Bridgett Demurrer:** Defendant Stephanie Bridgett demurs to Plaintiff Patrick Jones' First Amended Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to CCP 430.10(e). The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement

can be reached that would resolve the objections to be raised in the demurrer.” No meet and confer declaration was submitted. However, Defendants’ Notice of Hearing indicates that Defendant met and conferred with counsel for Plaintiff by written correspondence and telephone conference regarding the deficiencies in the FAC and the bases for this Demurrer. Plaintiff has not objected that Defendant failed to meet and confer prior to filing. The Court will exercise its discretion to reach the merits of the motion despite this procedural defect.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.

Plaintiff’s First Amended Complaint alleges three causes of action: 1) Violation of Business and Professions Code 17200, et seq; 2) Constructive Fraud; 3) Conversion.

*First Cause of Action – Violation of Business and Professions Code.* To state a claim for a violation of California’s Unfair Competition Law (UCL), Cal Bus & Prof Code § 17200, a plaintiff must allege: (1) a qualifying business act, practice, or advertising conduct that meets one of the statutory definitions of unfair competition, and (2) satisfying the strict statutory standing requirements for private litigants. Cal Bus & Prof Code § 17200, *Campbell v. FPI Management Inc.* (2024) 98 Cal. App. 5th 1151.

The UCL prohibits only “unlawful, unfair or fraudulent” business acts or practices, and its purpose is to promote fair competition in commercial markets for goods and services. Bus. & Prof. Code § 17200; *That v. Alders Maintenance Assn.* (2012) 206 Cal.App.4th 1419, 1427. Courts have expressly held that the UCL does not reach political election campaign conduct, which is not commercial in nature. *O’Connor v. Superior Court* (1986) 177 Cal.App.3d 1013, 1020. The FAC alleges only that Defendant engaged in reelection campaign activities during her work hours as the District Attorney. Neither the campaign activities, nor the performance of work duties as District Attorney are a business act or practice within the meaning of section 17200. Defendant’s Demurrer to the First Cause of Action is **SUSTAINED** without leave to amend for failure to state facts sufficient to constitute a cause of action.

*Second Cause of Action – Constructive Fraud.* Constructive fraud requires a breach of duty by one in a fiduciary or confidential relationship that induces justifiable reliance to the other’s prejudice. Civ. Code § 1573; *Tyler v. Children’s Home Society* (1994) 29 Cal.App.4th 511, 548. A public official’s general duty to constituents as a whole does not create the specific fiduciary relationship required to support a fraud claim; that duty runs to the public generally, not to any individual constituent. *Nussbaum v. Weeks* (1989) 214 Cal.App.3d 1589, 1597-99. The FAC alleges a duty owed to all County taxpayers alike, which is insufficient to establish a fiduciary relationship specific to Plaintiff. The FAC further fails to allege facts showing actual reliance or that Plaintiff was misled to his prejudice, offering only conclusory assertions of harm. Defendant’s Demurrer to the Second Cause of Action is **SUSTAINED** without leave to amend for failure to state facts sufficient to constitute a cause of action.

*Third Cause of Action – Conversion.* The elements of a conversion are the plaintiff’s ownership or right to possession of the property at the time of the conversion; the defendant’s conversion by a wrongful act or disposition of property rights; and damages. *Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 451. Here, Plaintiff alleges he “paid certain monies as taxes,” and that Defendant Bridgett “interfered with [his] tax monies” by misuse which he did not consent to. Once a taxpayer pays taxes to the government, he retains no ownership or possessory interest in those funds. Defendant’s Demurrer to the Third Cause of Action is

**SUSTAINED** without leave to amend for failure to state facts sufficient to constitute a cause of action.

“When a demurrer is sustained, the plaintiff must be given leave to amend his or her complaint when there is a reasonable possibility that the defect can be cured by amendment. [Citations.] ‘The burden of proving such reasonable possibility is squarely on the plaintiff.’” *Aghaji v. Bank of America, N.A.* (2016) 247 Cal.App.4th 1110, 1118. Here, Plaintiff failed to oppose the demurrer and therefore failed to carry his burden to show how amendment could cure defects in the pleading. It does not appear to the Court that amendment could cure the defects. The Demurrer is **SUSTAINED** without leave to amend. Defendant Bridgett is **DISMISSED** from this action. A proposed order has been lodged and will be executed.

**Tentative Ruling on County of Shasta Demurrer:** Defendant County of Shasta demurs to Plaintiff Patrick Jones’ First Amended Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to CCP 430.10(e). The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” No meet and confer declaration was submitted. However, Defendants’ Notice of Hearing indicates that Defendants engaged in good-faith efforts to meet and confer regarding the grounds for this demurrer and that they have satisfied their obligations under section 430.41. Plaintiff has not objected that Defendant failed to meet and confer prior to filing. The Court will exercise its discretion to reach the merits of the motion despite this procedural defect.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.

Plaintiff’s First Amended Complaint alleges three causes of action: 1) Violation of Business and Professions Code 17200, et seq; 2) Constructive Fraud; 3) Conversion.

*First Cause of Action – Violation of Business and Professions Code.* To state a claim for a violation of California’s Unfair Competition Law (UCL), Cal Bus & Prof Code § 17200, a plaintiff must allege: (1) a qualifying business act, practice, or advertising conduct that meets one of the statutory definitions of unfair competition, and (2) satisfying the strict statutory standing requirements for private litigants. Cal Bus & Prof Code § 17200, *Campbell v. FPI Management, Inc.* (2024) 98 Cal. App. 5th 1151.

The UCL authorizes courts to enjoin “[a]ny person who engages, has engaged, or proposes to engage in unfair competition ... .” (§ 17203, italics added.) The UCL includes within its provisions its own unique definition of “person”: “As used in this chapter, the term person shall mean and include natural persons, corporations, firms, partnerships, joint stock companies, associations and other organizations of persons.” (§ 17201.) ...

In all of these cases, the courts noted that the definition of the term “person” in the operative statutes did not include public entities, and concluded that the UCL did not otherwise evidence any intent to impose governmental liability. We agree. “Statutory interpretation begins with the text and will end there if a plain reading renders a plain meaning: a meaning without ambiguity, uncertainty, contradiction, or absurdity.” (*Oden v. Board of Administration* (1994) 23 Cal.App.4th 194, 201 [28 Cal. Rptr. 2d 388].) Section 17201

does not include any references to governmental agencies or political entities. Thus, only through an unreasonable, strained construction can the CMAB, an administrative adjunct to a governmental body, be deemed encompassed by the statutory definition of “person” as included within “natural persons, corporations, firms, partnerships, joint stock companies, associations” or “other organizations of persons.” (§ 17201.)”

*People for Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 878-879.

The UCL cannot be used to enjoin the conduct of the County, because it does not fall within the statute’s definition of “person.” The County’s Demurrer to the First Cause of Action is **SUSTAINED** without leave to amend.

*Second Cause of Action – Constructive Fraud.* Cal Gov Code § 815 provides that a public entity is not liable for an injury arising out of an act or omission of the public entity, a public employee, or any other person “[e]xcept as otherwise provided by statute”. Cal Gov Code § 815, *Cleveland v. Taft Union High School Dist.* (2022) 76 Cal. App. 5th 776.

Even if a statutory basis for liability is identified, Cal Gov Code § 815 dictates that a public entity's liability is subject to any statutory immunities. With respect to fraud-based claims, Cal Gov Code § 818.8 provides that a public entity is not liable for an injury caused by misrepresentation by an employee of the public entity, whether or not such misrepresentation be negligent or intentional. Cal Gov Code § 818.8.

Here, no statutory basis for liability is pled in the FAC. Instead, the FAC generally alleges that Defendant Bridgett was in a fiduciary position of trust obligated to ensure her salary and the salaries of her staff were used only in the course and scope of prosecutorial duties, and that Bridgett knew or should’ve known that she was expending her taxpayer-funded time on a personal reelection campaign. Plaintiff fails to plead facts sufficient to constitute a cause of action against the County here, because no statutory basis for liability is pled, and because the alleged misrepresentations alleged fall squarely within the immunity provided by Cal Gov Code § 818.8. The County’s Demurrer to the Second Cause of Action is **SUSTAINED** without leave to amend.

*Third Cause of Action – Conversion.* Under California law, a plaintiff can state a valid cause of action for conversion against a public entity, such as a county, provided the claim is grounded in a statutory violation and is not barred by specific statutory immunities. *County of San Bernardino v. Superior Court* (2022) 77 Cal. App. 5th 1100, Cal Gov Code § 815. Consequently, a conversion action against a county can proceed if a statutory or constitutional duty exists and the public entity's failure to perform that duty results in the wrongful exercise of dominion over the plaintiff's property. *Ibid.*

To state a cause of action for conversion against a county, a plaintiff must plead: 1) the plaintiff's ownership or right to possession of the property, 2) the defendant's conversion of the property by a wrongful act or disposition of property rights, and 3) damages. *Hodges v. County of Placer* (2019) 41 Cal. App. 5th 537. To satisfy the statutory liability requirement against a public entity, a plaintiff must identify an enactment that imposes a mandatory duty upon the entity. *County of San Bernardino v. Superior Court* (2022) 77 Cal. App. 5th 1100. Under Cal Gov Code § 815.6, a public entity may be held liable for an injury if a statutory enactment imposes an obligatory, mandatory duty designed to protect against the risk of the particular injury suffered, and the entity's failure to discharge that duty with reasonable diligence proximately caused the injury. *Ibid.*

The FAC does not identify an enactment that imposes a mandatory duty upon the entity. Instead, it alleges that Plaintiff paid taxes, and Plaintiff did not consent to a particular expenditure of those taxes. Plaintiff alleges his taxes contributed to the salaries of Shasta County District Employees, and that Defendant Bridgett wrongfully diverted the salaries for her own gain. Plaintiff alleges he was harmed by this misuse of taxpayer funds. This is insufficient to state a cause of action against the County, both because it fails to identify an enactment imposing

a mandatory duty, and because Plaintiff does not plead an ownership or right of possession to the property. The Demurrer is **SUSTAINED** without leave to amend.

“When a demurrer is sustained, the plaintiff must be given leave to amend his or her complaint when there is a reasonable possibility that the defect can be cured by amendment. [Citations.] ‘The burden of proving such reasonable possibility is squarely on the plaintiff.’” *Aghaji v. Bank of America, N.A.* (2016) 247 Cal.App.4th 1110, 1118. Here, Plaintiff failed to oppose the demurrer and therefore failed to carry his burden to show how amendment could cure defects in the pleading. It does not appear to the Court that amendment could cure the defects. The Demurrer is **SUSTAINED** without leave to amend. The County is **DISMISSED** from this action. No proposed order has been submitted as required by Local Rule 5.17(D). Defendant County shall submit the order.

**Tentative Ruling on Review Hearing:** This matter is on calendar for review regarding status of service of the First Amended Complaint and responsive pleadings. Defendants Stephanie Bridgett and Shasta County filed separate demurrers to the First Amended Complaint. Both were sustained without leave to amend. Both named defendants were ordered dismissed from the matter. Absent an appearance by Plaintiff and a request for leave to name a Doe Defendant, the Court intends to vacate any future dates and close the file. **An appearance is necessary on today’s calendar.**